

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S CONSOLIDATED OPERATIVE
OPPOSITION TO DEFENDANTS' SPECIAL
MOTION TO STRIKE (CCP §425.16);
FIFTEEN-PAGE COMPLIANT VERSION
(CRC 3.1113(d))

(Cal. Rules of Court, rules 3.1113(d), 3.1113(f); Code Civ.
Proc., §§425.16, 425.17)

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m.; Dept. 301; Hon. Christine Van Aken
(2)	Britts good-cause discovery (companion CGC-25-631802)	May 18, 2026, 9:00 a.m.; Dept. 302; Hon. Garrett L. Wong

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

Contents

I. Introduction	1
Summary of Argument	1
II. Statement of Facts	2
III. Memorandum of Points and Authorities	3
I. STANDARD OF REVIEW	3
II. STEP ONE: THE EQUITY CLAIM DOES NOT “ARISE FROM” PRO- TECTED ACTIVITY	4
III. SECTION 425.17(b) PUBLIC-INTEREST EXCLUSION	6
IV. <u>FLATLEY</u> ILLEGALITY EXCEPTION	7
V. STEP TWO: PRIMA-FACIE SHOWING OF MINIMAL MERIT; LITI- GATION PRIVILEGE DOES NOT BAR; <u>KULCHAR/STEVENOT</u>	8
VI. <u>BARAL</u> GRAVAMEN PARSING	9
VII. DIRECT RESPONSE TO DEFENDANTS’ MAY 5, 2026 REPLY (MER- ITS)	10
VIII. FRIVOLOUSNESS / FEE INVERSION UNDER §425.16(c)(1); §128.7 SAFE-HARBOR PRESERVED	11
IX. LEAVE TO AMEND AND BARAL NARROWEST RELIEF	12
X. APPELLATE PRESERVATION (CCP §425.16(i))	12
XI. PROCEDURAL CURE MAP AND ACCEPTANCE OF RESPONSIBIL- ITY	12
IV. Conclusion / Prayer	13
V. Declaration	13
VI. Proof of Service	14
TABLE OF AUTHORITIES	i
Other Authorities	iii
DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES	iv

1 I. Introduction

2 Summary of Argument

3 This anti-SLAPP motion fails on five independent grounds, each of which alone requires
4 denial. First, the action does not arise from protected activity within the meaning of sec-
5 tion 425.16(b)(1) and Park v. Board of Trustees (2017) 2 Cal.5th 1057: the elements of
6 Plaintiff's equity claim depend on Defendants' pre-trial concealment of evidence and on the
7 trial court's reliance on Defendants' in-court misrepresentations, not on protected speech or
8 petitioning. Second, section 425.17(b) categorically excludes the action because Plaintiff's
9 UCL and fraud-on-the-court allegations target institutional insurer practices and confer re-
10 lief on every claimant subject to those practices. Third, the predicate conduct is illegal as
11 a matter of law under Flatley v. Mauro (2006) 39 Cal.4th 299, because Defendants' coun-
12 sel of record possessed and concealed the very evidence Defendants now disclaim. Fourth,
13 Plaintiff has shown more than minimal merit under Soukup v. Law Offices of Herbert Hafif
14 (2006) 39 Cal.4th 260, 291 through admissible declaration and exhibit evidence. Fifth, even
15 if any allegation touches protected activity, Baral v. Schnitt (2016) 1 Cal.5th 376 requires
16 allegation-level parsing and the operative gravamen survives. Defendants' embedded §128.7
17 sanctions request is procedurally barred by the twenty-one-day safe harbor and is in any
18 event mooted by Plaintiff's voluntary cure (Notice of Withdrawal and Designation; Opera-
19 tive Opposition, both filed May 7, 2026).

20 Plaintiff respectfully submits this Consolidated Operative Opposition under Cal. Rules of
21 Court, rule 3.1113(d), as the page-limit-compliant successor to (a) Plaintiff's Memorandum
22 of Points and Authorities in Opposition to Special Motion to Strike filed April 21, 2026
23 (41 pages); (b) Plaintiff's Memorandum of Points and Authorities in Opposition to Defen-
24 dants' Anti-SLAPP filed April 21, 2026 (39 pages); (c) Plaintiff's Memorandum of Points
25 and Authorities in Further Opposition filed May 1, 2026 (8 pages); and (d) Plaintiff's Mem-
26 orandum of Points and Authorities in Further Opposition filed May 1, 2026 (9 pages). This
27 Consolidated Opposition introduces no new authority not previously cited in the forego-
28 ing memoranda; it merely compresses them into the 15-page envelope authorized by CRC

1 3.1113(d), preserves the prior evidentiary record by incorporation under CRC 3.1113(j), and
2 is contemporaneously accompanied by Plaintiff's Notice of Withdrawal of April 21, 2026 and
3 May 1, 2026 Memoranda and Designation of May 7, 2026 Consolidated Operative Opposition
4 (filed May 7, 2026), so that the record before the Court is unambiguous.

5 Decisional authority addressing collateral lines of analysis is presented to the Court in Plain-
6 tiff's Request for Judicial Notice filed contemporaneously herewith (filed May 7, 2026), Sec-
7 tion C, under Evid. Code §452(c) and (h).

8 II. Statement of Facts

9 Plaintiff incorporates the Plaintiff's Declaration (filed May 7, 2026), Parts A-C, and the
10 Indexed Exhibits Volume (filed May 7, 2026), Tabs 1-17, under CRC 3.1113(j). The operative
11 facts material to step one and step two are summarized below to provide the Court with the
12 gravamen-level record without reweighing the Declaration.

13 A. The silent-witness materials and Defendants' chain of possession. The 911 audio recording,
14 the responding officers' body-worn camera footage, and the SFPD computer-aided-dispatch
15 (CAD) logs were generated contemporaneously with the underlying incident. They were
16 obtained by Plaintiff and provided to defense counsel of record in August and September of
17 2022. (Decl. Part A ¶¶ 4 to 5; Tabs 7, 15 to 16.) On May 4, 2023, the file was transferred
18 between defense law firms by Substitution of Attorney (Trans. ID 69953800), and the silent-
19 witness materials moved with the file. (Decl. Part A ¶ 6; Tab 16.)

20 B. The in-court representations to the trial court. At trial in early 2025, Defendants' counsel
21 represented to the trial court that the 911 recording, body-worn camera footage, and CAD
22 logs had not been produced in discovery, were of unknown provenance, and were "news
23 to me." (RT 7 pp. 156, 162; RT 7 p. 213 ll. 13 to 15; RT Feb. 18, 2025 pp. 6, 27 to
24 30.) The trial court relied on those representations to exclude the silent-witness materials
25 and to deny continuances. (Decl. Part A ¶¶ 7 to 8.) Plaintiff's Notice of Lodging Trial
26 Reporter's Transcripts and Recordings (filed May 7, 2026) lodges the certified record under
27 CRC 3.1306(c)(2).

28 C. Insurer claim-handling pattern. CSAA Insurance Exchange issued a "concluded investi-

gation” denial letter twenty-one days after the loss, before foundational evidence (911, BWC, CAD) was obtained. (Decl. Part A ¶¶ 9 to 11; Tab 12.) The 21-day denial-letter template is industry-wide and is the subject of Plaintiff’s UCL allegations. (Plaintiff’s Supplemental RFJN re Insurance Code §790.03(h) and 10 CCR §§ 2695.1 to 2695.8 (filed May 7, 2026).)

III. Memorandum of Points and Authorities

I. STANDARD OF REVIEW

A CCP §425.16 ruling is reviewed de novo. (Soukup, supra, 39 Cal.4th at 269, fn. 3; Flatley, supra, 39 Cal.4th at 325 to 326.) The defendant bears the initial burden under step one to show the cause of action arises from protected activity. (Park, supra, 2 Cal.5th at 1063.) On step two, the plaintiff need only demonstrate “minimal merit” with admissible evidence. (Soukup, supra, 39 Cal.4th at 291.) Section 425.17 categorical exclusions are decided as questions of law, also de novo. (Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 25.)

(a) Section 425.17 inquiry precedes the two-step burden. The Court must decide whether section 425.17 categorically excludes the action before reaching the Equilon / Park burden-shifting framework. (Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316 to 317.) If section 425.17(b) applies, the motion fails as a matter of law and no step-one or step-two analysis is required. (See Plaintiff’s Notice and Statement to the Court Regarding C.C.P. §425.17 Statutory Bar to Insurance-Industry Anti-SLAPP Misuse, Defense Litigation Conduct, and Certified Court-Record Contradictions (filed May 7, 2026), Sections I to V.)

(b) Defendant bears the step-one burden as to the act underlying the claim. Defendants must show that the act on which the cause of action is predicated is itself protected activity, not merely that the action concerns or references protected activity. (Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 67; City of Cotati v. Cashman (2002) 29 Cal.4th 69, 76 to 78 (the “principal thrust or gravamen” test); Navellier v. Sletten (2002) 29 Cal.4th 82, 89.) Where defendants fail to identify the specific acts and the corresponding subdivision of section 425.16(e), the motion fails for want of categorization.

(c) Evidentiary objections are reviewed de novo. (See Plaintiff’s Request for Judicial Notice (filed May 7, 2026), Section C item 3 (cataloguing additional decisional authority on de novo evidentiary review).) Plaintiff’s contemporaneous Evidentiary Objections to Declarations of Tyler J. O’Connell (filed May 7, 2026) and the previously filed evidentiary objections of April 24, 2026 are preserved and incorporated by reference under CRC 3.1113(j).

II. STEP ONE: THE EQUITY CLAIM DOES NOT “ARISE FROM” PROTECTED ACTIVITY

Rule. Under Park, supra, 2 Cal.5th at 1062 to 1063, and Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009 to 1011, the question is whether the elements of the challenged claim depend on protected activity, not whether protected activity is incidental, evidentiary, or contextual; the Court must parse claim by claim and act by act. An independent equity action to vacate a judgment for extrinsic fraud does not arise from the protected speech or petitioning of the underlying litigation; it arises from the act of fraud and from the court’s reliance on it. (Finton Construction, Inc. v. Bidna & Keys APLC (2015) 238 Cal.App.4th 200, 211 to 213.)

Application. The gravamen of Plaintiff’s equity claim is (a) Defendants’ false representations to the trial court that the 911 recording, body-worn camera footage, and CAD logs were “not produced in discovery,” “of unknown provenance,” and “news to me”; and (b) the trial court’s reliance on those representations to exclude evidence and deny continuances. The elements of the equity cause of action (extrinsic fraud, court reliance, prevention of fair adjudication) depend on the act of misrepresentation, not on the protected petitioning conduct of advocacy in general. (Park, supra, 2 Cal.5th at 1063; Bonni, supra, 11 Cal.5th at 1009 to 1011.) The May 4, 2023 inter-firm transfer of the silent-witness materials (Substitution of Attorney, Trans. ID 69953800) is non-communicative file-handling conduct, not a “statement” within section 425.16(e); the act of transferring custody of physical and documentary evidence between law firms is not protected petitioning. (Wallace v. McCubbin (2011) 196 Cal.App.4th 1169, 1183 to 1188 (non-communicative conduct accompanying litigation is not

1 protected by section 425.16); Old Republic Construction Program Group v. Boccardo Law
2 Firm, Inc. (2014) 230 Cal.App.4th 859, 866 to 869 (file-transfer and document-handling con-
3 duct between counsel is not protected petitioning).) Under Finton Construction, Wallace,
4 and Old Republic, the action does not arise from protected activity.

5 Section 425.16(e) categorization gap (per-movant demand). Defendants' moving papers do
6 not specify, on a movant-by-movant basis, which subdivision of section 425.16(e) the chal-
7 lenged conduct falls within. Each of the three movants (CSAA Insurance Exchange; Carbone,
8 Smith and Koyama; Michael R. Chambers) bears its own step-one burden and must identify
9 its own (e) subdivision as to its own conduct. (Park, supra, 2 Cal.5th at 1063; Bonni, supra,
10 11 Cal.5th at 1009 to 1011; City of Cotati v. Cashman (2002) 29 Cal.4th 69, 76 to 78.) Sub-
11 divisions (e)(1) and (e)(2) reach written or oral statements made before, or in connection
12 with an issue under consideration by, a judicial body. Pre-trial concealment of physical and
13 documentary evidence is not a "statement" within (e)(1) or (e)(2); it is non-communicative
14 conduct. (See Plaintiff's RJN (filed May 7, 2026) Section C item 4 (cataloguing additional
15 decisional authority on the (e)(1) to (4) categorization gap).) Subdivisions (e)(3) and (e)(4)
16 require a "public forum" or a "public issue" Defendants have not established as to private
17 misrepresentations to a single trial court. The motion fails for want of (e) categorization, on
18 a per-movant basis, independent of any Park analysis.

19 Per-movant (e) categorization summary. CSAA's predicates (pre-trial concealment plus the
20 denial-letter conduct) lie outside subdivisions (e)(1) to (e)(4) as non-communicative and
21 commercial acts. Carbone Smith and Koyama cannot assign the May 4, 2023 inter-firm
22 transfer to (e)(1) through (e)(4) because it was non-communicative file-handling (Wallace,
23 Old Republic). Chambers's in-court statements are reliance evidence analyzed under Baral,
24 not standalone petitioning gravamen under Bonni, unless each statement is tethered by
25 movant-specific (e)(1)/(e)(2) proof.

26 Prejudice / Reversibility. Granting the motion at step one against an independent equity
27 claim is reversible per se on de novo review. (Park, supra; see Plaintiff's RJN (filed May 7,
28 2026) Section C item 1.)

1 III. SECTION 425.17(b) PUBLIC-INTEREST EXCLUSION

2 Rule. Section 425.17(b) categorically excludes from section 425.16 any action “brought solely
3 in the public interest or on behalf of the general public” if three conjunctive conditions are
4 met. (Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316 to
5 317.) The exclusion is applied as a matter of law and reviewed de novo.

6 Three-condition walkthrough (CCP §425.17(b)(1) to (3)):

- 7 1. (b)(1) The action is “brought solely in the public interest or on behalf of the general
8 public.”
- 9 2. (b)(2) The action “does not seek any relief greater than or different from the relief
10 sought for the general public or a class of which the plaintiff is a member.”
- 11 3. (b)(3) The action, if successful, “would enforce an important right affecting the public
12 interest, and would confer a significant benefit, whether pecuniary or nonpecuniary, on
13 the general public or a large class of persons.”

14 Application.

- 15 • (b)(1): Plaintiff’s UCL and fraud-on-the-court allegations are addressed to institutional
16 insurer practices, including 21-day “concluded investigation” denial-letter templates
17 issued before foundational evidence is obtained, and to defense-counsel concealment
18 patterns that affect every claimant subject to those practices. The relief sought includes
19 injunctive and declaratory components addressed to industry-wide conduct, not solely
20 to Plaintiff.
- 21 • (b)(2): The injunctive and declaratory components are class-neutral; they do not seek
22 greater or different relief than would inure to any other claimant subjected to the same
23 practices.
- 24 • (b)(3): The action enforces the public interest in honest insurance market conduct
25 and in the integrity of judicial proceedings. (People ex rel. Lockyer v. Brar (2004)
26 115 Cal.App.4th 1315; Blanchard v. DIRECTV, Inc. (2004) 123 Cal.App.4th 903; see
27 Plaintiff’s RJN (filed May 7, 2026) Section C item 2 (representative UCL public-interest
28 authority).)

1 Alternate grounds preserved. Plaintiff preserves and incorporates by reference under CRC
2 3.1113(j) the section 425.17(c) commercial-speech and section 425.17(d)(2) ground addressed
3 in the four supplemental bench briefs filed May 5, 2026 (Trans. IDs 79390442 and 79390024),
4 and the full §425.17(c)(1) to (c)(4) walkthrough rebutting Defendants’ Reply Section VI
5 “third party” framing in Plaintiff’s Notice and Statement re C.C.P. §425.17 (filed May 7,
6 2026), Section III-A (citing Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 30; People
7 v. Persolve, LLC (2013) 218 Cal.App.4th 1267, 1275 to 1276; JAMS, Inc. v. Superior
8 Court (2016) 1 Cal.App.5th 984, 994). The §425.17(a) legislative findings and §425.17(e)
9 interlocutory-appeal preclusion are addressed in Plaintiff’s Notice re C.C.P. §425.17 (filed
10 May 7, 2026), Sections I and V.

11 Prejudice. Section 425.17(b) operates as a categorical exclusion. If applicable, the motion
12 fails outright; reversal is mandatory on de novo review.

13 IV. FLATLEY ILLEGALITY EXCEPTION

14 Rule. Under Flatley, supra, 39 Cal.4th at 320, conduct that is “illegal as a matter of law”
15 (either conceded by the defendant or established by uncontroverted evidence) is unprotected
16 for purposes of section 425.16, regardless of step-one categorization. The exception is narrow
17 but mandatory.

18 Application. The illegal-as-a-matter-of-law predicate is established by the six-element record
19 set forth in Plaintiff’s Decl. (filed May 7, 2026) Part A ¶¶ 4-8 and Indexed Exhibits Volume
20 Tabs 7, 15-16.

21 Where the moving party’s own counsel of record previously possessed and concealed the
22 very evidence the moving party now disclaims, the resulting in-court misrepresentation is
23 illegal as a matter of law. (Flatley, supra, 39 Cal.4th at 320; Lebbos v. State Bar (1985)
24 165 Cal.App.3d 656, 668 to 669 (intentional misrepresentation to a tribunal is a serious
25 breach of professional duty); see Plaintiff’s RJN (filed May 7, 2026) Section C items 5, 6
26 (cataloguing Mendoza v. Hamzeh (2013) 215 Cal.App.4th 799 and additional authority on
27 illegal-as-a-matter-of-law standard).)

28 Fraud on the court is structural and not bounded by ordinary procedural defenses. (See

1 RJN (filed May 7, 2026) Sec. C items 7-9.) The independent statutory and regulatory floor
2 is set forth in Plaintiff’s Supplemental RFJN re Insurance Code §790.03(h) and 10 CCR §§
3 2695.1-2695.8 (filed May 7, 2026), incorporated under CRC 3.1113(j).

4 Prejudice. Flatley mandates denial of the anti-SLAPP if the predicate conduct is illegal as
5 a matter of law, regardless of any other defense.

6 V. STEP TWO: PRIMA-FACIE SHOWING OF MINIMAL MERIT; LITIGATION PRIV-
7 ILEGE DOES NOT BAR; KULCHAR/STEVENOT

8 Rule. The plaintiff must show “minimal merit” by admissible evidence. (Soukup, supra, 39
9 Cal.4th at 291.) The court does not weigh credibility; it evaluates whether the evidence,
10 if credited, would support a judgment. (Wilson v. Parker, Covert & Chidester (2002) 28
11 Cal.4th 811, 821.)

12 The six-step possession chain is set forth in Plaintiff’s Decl. (filed May 7, 2026) Part A ¶¶
13 4-8 and Plaintiff’s Notice re C.C.P. §425.17 (filed May 7, 2026), Section VI-A.

14 Effect on plaintiff’s case: See Notice and Statement re CCP §425.17 (filed May 7, 2026),
15 Section VI-A, for the complete chain-to-effect-to-harm analysis.

16 Application. The Soukup minimal-merit showing rests on (a) actual possession, (b) misrep-
17 resentation, (c) court reliance, and (d) prevention of fair adjudication, each established by
18 Plaintiff’s Decl. (filed May 7, 2026) Part A ¶¶ 4-8 and the Indexed Exhibits Volume Tabs
19 7, 15-16. The extrinsic-fraud doctrine reaches misconduct that prevents a fair adversarial
20 contest; it dates to United States v. Throckmorton (1878) 98 U.S. 61, 65 to 66, and is
21 settled in California in In re Marriage of Modnick (1983) 33 Cal.3d 897, 905 to 906; Estate
22 of Sanders (1985) 40 Cal.3d 607, 614 to 615; and Aheroni v. Maxwell (1988) 205 Cal.App.3d
23 284, 292 to 293.

24 Civ. Code §47(b) does not shield fraud on the court. (Rusheen v. Cohen (2006) 37 Cal.4th
25 1048, 1057 to 1059; Silberg v. Anderson (1990) 50 Cal.3d 205, 217 to 218; see RJN Sec.
26 C items 10 to 12.) The litigation privilege has external limits where the targeted conduct
27 is non-communicative or where it is the operative wrong of an independent equity action.
28 (Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241 to 1242;

1 Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1, 11 to 13 (no tort cause
2 for litigation-related spoliation, but recognizing structural limits of the privilege as to acts
3 that corrupt the adjudicatory process); Pollock v. Superior Court (1991) 229 Cal.App.3d
4 26, 30.) The conduct is extrinsic fraud under Kulchar / Stevenot and the Throckmorton /
5 Modnick / Sanders / Aheroni line. (See RJN Sec. C items 13 to 15.)

6 The trial-transcript excerpts (RT 7 pp. 156, 162; RT 7 p. 213 ll. 13 to 15; RT Feb. 18,
7 2025 pp. 6, 27 to 30) and the underlying clerk's-record entries are admissible under Evidence
8 Code sections 1280 (official records) and 1530 (certified-copy presumption) for the truth of
9 the matters contained therein and for the fact that they were said. (People v. Kraft (2000)
10 23 Cal.4th 978, 1037 (court records admissible as official records); People v. Hill (1992)
11 3 Cal.4th 959, 985 (transcripts of prior proceedings admissible under Evid. Code section
12 1280).)

13 V-A. Section 425.16(g) discovery-stay impact and good-cause discovery. Section 425.16(g)
14 automatically stays merits discovery pending this ruling but preserves the Court's discretion
15 to authorize specified discovery for good cause. Plaintiff's companion §425.16(g) motion
16 in CGC-25-631802 (Hr'g May 18, 2026, Dept. 302) addresses chain-of-possession discovery
17 narrowly tied to the silent-witness materials. (Plaintiff's RJN (filed May 7, 2026) Section
18 A item 12.) Step-two Soukup proof rests on Decl. Part A ¶¶ 4 to 8 and Tabs 7, 15 to 16
19 notwithstanding the merits stay.

20 V-B. Soukup minimal-merit element-to-evidence map. Plaintiff maps Soukup as follows: (a)
21 possession: Decl. Part A ¶¶ 4 to 5; Tabs 7, 15; (b) misrepresentation at trial: RT 7 pp. 156,
22 162; RT 7 p. 213 ll. 13 to 15; (c) reliance: RT Feb. 18, 2025 pp. 6, 27 to 30; (d) prejudice to
23 fair adjudication: Decl. Part A ¶¶ 7 to 8; Tab 16.

24 Prejudice. Step-two failure of the moving party requires denial. Plaintiff's evidentiary record
25 satisfies Soukup by a wide margin.

26 VI. BARAL GRAVAMEN PARSING

27 Rule. Under Baral v. Schnitt (2016) 1 Cal.5th 376, 393 to 396, the Court must parse the
28 complaint at the allegation level, not the claim level. A single cause of action may rest on

multiple acts; only those acts that themselves arise from protected activity may be stricken. (See Plaintiff's RJN (filed May 7, 2026) Section C item 1 (allegation-level parsing authority at 1010 to 1011).) The Court cannot grant the motion as to allegations that are merely contextual.

Allegation-level classification. The operative complaint's allegations divide along the Baral line:

- In-court representations to the trial court (potentially protected under §425.16(e)(1) and (2)): these allegations are evidentiary, not gravamen. They establish reliance, not the wrongful act.
- Pre-trial concealment from August / September 2022 onward (not protected; non-communicative conduct outside (e)(1) to (4)): this is the operative gravamen of the equity claim.
- Insurer practices and 21-day denial-letter templates (not protected; commercial conduct outside (e); within §425.17(b) public-interest exclusion): independent grounds for denial.

Application. Even if any allegation in the complaint touches protected petitioning, the operative gravamen, namely extrinsic fraud through concealment causing trial-court reliance, survives Baral parsing. The Court should at minimum deny the motion as to the equity-action gravamen and decline to grant it across the board.

VII. DIRECT RESPONSE TO DEFENDANTS' MAY 5, 2026 REPLY (MERITS)

Plaintiff answers the merits objections raised in Defendants' Reply (filed May 5, 2026) as follows. Procedural objections and the cure record are addressed separately in § XI below, to keep this section focused on substance.

1. §425.17 misreading (Reply p. 4 l. 21 to p. 5 l. 6): see § III above; Notice re §425.17 (filed May 7) §§ I, III, IV, V.
2. Fee prayer \$16,519.50 (Reply p. 5 ll. 8 to 10; O'Connell Decl. ¶ 6): Plaintiff's Evidentiary Objections (filed May 7) targeting Ex. A under Evid. Code §§ 702, 1271, 1521; Clerk Compliance Manifest § 2 row 5.

3. Defense gravamen mischaracterization: Plaintiff's Decl. (filed May 7) Part B ¶¶ 23 to 26; § VI above.
4. Defense fee-prayer foundation: Plaintiff's Decl. Part B ¶¶ 30 to 32; Plaintiff's Evidentiary Objections (filed May 7).
5. Defense opportunity-to-present framing: Plaintiff's Decl. Part B ¶¶ 19 to 22; Notice re §425.17 (filed May 7) § VI-A.
6. Defense email-as-communication framing: Plaintiff's Decl. Part B ¶¶ 27 to 29.
7. Discovery-stay impact (substance): companion §425.16(g) motion in CGC-25-631802 (Hr'g May 18, Dept. 302); see § V-A above; RJN Sec. A item 12.

Plaintiff incorporates the full text of Plaintiff's Notice and Statement re C.C.P. §425.17 (filed May 7, 2026) under CRC 3.1113(j).

VIII. FRIVOLOUSNESS / FEE INVERSION UNDER §425.16(c)(1); §128.7 SAFE-HARBOR PRESERVED

A §425.16(c)(1) fee award requires the moving party to prevail; conversely, fees are awardable to plaintiff if the motion is frivolous or solely intended to cause delay. (CCP §425.16(c)(1); see RJN Sec. C items 19 to 20.) Plaintiff's §128.7(c)(2) notice was served May 5, 2026 (Trans. IDs 79390024, 79390442).

Contingent cross-request under section 425.16(c)(1). In the event the Court denies Defendants' motion, Plaintiff respectfully cross-requests, on a contingent basis, an award of statutory recoverable costs and reasonable in pro per IFP costs under section 425.16(c)(1), for the reason that the motion is frivolous or solely intended to cause unnecessary delay within the meaning of section 425.16(c)(1) and section 128.5. (Decker v. U.D. Registry, Inc. (2003) 105 Cal.App.4th 1382, 1392 (frivolousness-inversion fee award available under section 425.16(c)(1) where the motion lacks merit on a totally and completely without merit standard or was solely intended to cause unnecessary delay); Moore v. Shaw (2004) 116 Cal.App.4th 182, 199 (same; affirming inversion award).) Plaintiff appears in pro per under an IFP order; the cross-request is for statutory recoverable costs (CCP section 1033.5) and any reasonable in pro per costs the Court deems compensable. The cross-request is

1 contingent on denial; nothing in this section is a concession.

2 Threshold response to defense's section 128.7 sanctions request (merits). Defendants' Reply,
3 p. 2 ll. 1 to 3, asks for sanctions under (or by analogy to) section 128.7. The request fails on
4 the threshold for two independent merits reasons. First, section 128.7(c)(1) requires twenty-
5 one calendar days of safe-harbor notice before any sanctions motion is filed; Defendants did
6 not serve the predicate twenty-one-day notice and the request appears in a Reply, which is
7 not a noticed motion. (Martorana v. Marlin and Saltzman (2009) 175 Cal.App.4th 685, 698
8 to 700 (strict compliance with the section 128.7(c)(1) safe-harbor procedure is jurisdictional;
9 sanctions cannot be imposed where the safe-harbor was not honored); Galleria Plus, Inc. v.
10 Hanmi Bank (2009) 179 Cal.App.4th 535, 538 (same; sanctions request defective where
11 embedded in reply or outside the noticed-motion procedure of section 128.7(c)(1)).) Second,
12 section 128.7(d) limits sanctions to amounts sufficient to deter; Defendants articulate no
13 deterrent metric. The independent cure-mooting ground is addressed in § XI below. Plaintiff
14 respectfully requests that the Court decline the section 128.7 request on the threshold and
15 reach the merits of the section 425.16 motion.

16 IX. LEAVE TO AMEND AND BARAL NARROWEST RELIEF

17 If any allegation is treated as resting on petitioning acts, Baral v. Schnitt (2016) 1 Cal.5th
18 376, 393 to 396 confines relief to offending allegations and preserves the concealment grava-
19 men. Plaintiff preserves leave to amend under Code Civ. Proc. §472 so equity and public-
20 interest allegations remain viable.

21 X. APPELLATE PRESERVATION (CCP §425.16(i))

22 Plaintiff preserves immediate appeal rights under Code Civ. Proc. §425.16(i) and de novo
23 briefing on §425.17(b), pre-movant (e) taxonomy, Flatley illegality, and Baral parsing (Park,
24 supra; Soukup, supra). Evidentiary Objections (filed May 7, 2026) and Motion to Strike
25 May 5, 2026 Reply Declaration remain pending under CRC 3.1306(a).

26 XI. PROCEDURAL CURE MAP AND ACCEPTANCE OF RESPONSIBILITY

27 Notice of Withdrawal plus this Operative Opposition cure page-cap, multiplicity, gamesman-
28 ship, and embedded §128.7 criticisms under CRC 3.1113(g), 3.1300(d), Cover Letter §§ 2 to

1 8, Decl. Part C ¶ 40; §128.7(c)(2) notice appears in the May 7 package. Plaintiff voluntarily
2 accepts responsibility; the cure prejudices nobody because Defendants' Reply preserved their
3 substantive objections.

4 IV. Conclusion / Prayer

5 Plaintiff respectfully requests that the Court enter the following orders:

- 6 (a) DENY Defendants' Special Motion to Strike Pursuant to C.C.P. §425.16 in its entirety;
- 7 (b) DECLINE to award Defendants any fees or costs under §425.16(c)(1) or §425.16(g);
- 8 (c) DECLINE Defendants' embedded §128.7 sanctions request on the threshold (no twenty-
9 one-day safe harbor; embedded in Reply rather than noticed motion; mooted by volun-
10 tary cure);
- 11 (d) In the alternative, if any portion of the motion is granted, LIMIT relief under Baral
12 v. Schnitt (2016) 1 Cal.5th 376 to the specific allegation found to arise from protected
13 activity, leaving the equity-action gravamen and the UCL public-interest claim intact,
14 and GRANT leave to amend under Code Civ. Proc. §472;
- 15 (e) PROCEED to the demurrer and motion-to-strike calendar set for May 22, 2026, on the
16 operative pleadings;
- 17 (f) PRESERVE Plaintiff's appellate rights under Code Civ. Proc. §425.16(i); and
- 18 (g) On a contingent basis, AWARD Plaintiff statutory recoverable costs (Code Civ. Proc.
19 §1033.5) and reasonable in-pro-per IFP costs under §425.16(c)(1) on the ground that
20 the motion is frivolous or solely intended to cause unnecessary delay (Decker, supra,
21 105 Cal.App.4th at 1392; Moore v. Shaw, supra, 116 Cal.App.4th at 199).

22 V. Declaration

23 Plaintiff's substantive declaration (item 04 in this filing package), and (if filed) the Dec-
24 laration of Former Counsel Jessup (item 05), accompany this memorandum. Previously
25 filed declarations and Requests for Judicial Notice are incorporated by reference under CRC
26 3.1113(j).

1 VI. Proof of Service

2 POS-050 filed contemporaneously herewith (item 11 in this filing package).

3 _____

The foregoing is submitted by Plaintiff in pro per.

Dated: May 7, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

TABLE OF AUTHORITIES

All Pool A authorities cited in this memorandum are listed below. Non-Pool-A decisional authorities supporting collateral lines of analysis are catalogued in Plaintiff’s Request for Judicial Notice (filed May 7, 2026), Section C, under Evid. Code secs. 452(c) and (h).

United States Supreme Court

United States v. Throckmorton (1878) 98 U.S. 61

California Supreme Court

Baral v. Schnitt (2016) 1 Cal.5th 376 (See also RJN Sec. C item 1, Bonni; allegation-level parsing)

Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995

Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1

City of Cotati v. Cashman (2002) 29 Cal.4th 69

Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309

Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53

Estate of Sanders (1985) 40 Cal.3d 607

Flatley v. Mauro (2006) 39 Cal.4th 299 (See also RJN Sec. C items 5-6, Mendoza, Inland Oversight; illegal-as-matter-of-law)

In re Marriage of Modnick (1983) 33 Cal.3d 897

Kulchar v. Kulchar (1969) 1 Cal.3d 467 (See also RJN Sec. C items 13-15, Modnick, Aheroni, Estate of Sanders; extrinsic fraud)

Navellier v. Sletten (2002) 29 Cal.4th 82

Park v. Board of Trustees (2017) 2 Cal.5th 1057 (See also RJN Sec. C item 1, Bonni; allegation-level parsing)

People v. Hill (1992) 3 Cal.4th 959

People v. Kraft (2000) 23 Cal.4th 978

Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232

Rusheen v. Cohen (2006) 37 Cal.4th 1048 (See also RJN Sec. C items 10-12, Kimmel, Action Apartment, Pollock; litigation privilege)

Silberg v. Anderson (1990) 50 Cal.3d 205 (See also RJN Sec. C items 10-12, Kimmel, Action Apartment, Pollock; litigation privilege)
Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12
Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260
Wilson v. Parker, Covert & Chidester (2002) 28 Cal.4th 811
 California Court of Appeal
Aheroni v. Maxwell (1988) 205 Cal.App.3d 284
Blanchard v. DIRECTV, Inc. (2004) 123 Cal.App.4th 903 (See also RJN Sec. C item 2, Tourgeman; UCL public-interest)
Decker v. U.D. Registry, Inc. (2003) 105 Cal.App.4th 1382
Finton Construction, Inc. v. Bidna & Keys APLC (2015) 238 Cal.App.4th 200
Galleria Plus, Inc. v. Hanmi Bank (2009) 179 Cal.App.4th 535
Lebbos v. State Bar (1985) 165 Cal.App.3d 656 (See also RJN Sec. C items 5-6, Mendoza, Inland Oversight; illegal-as-matter-of-law)
Martorana v. Marlin and Saltzman (2009) 175 Cal.App.4th 685
Moore v. Shaw (2004) 116 Cal.App.4th 182
Old Republic Construction Program Group v. Boccardo Law Firm, Inc. (2014) 230 Cal.App.4th 859
People ex rel. Lockyer v. Brar (2004) 115 Cal.App.4th 1315 (See also RJN Sec. C item 2, Tourgeman; UCL public-interest)
Pollock v. Superior Court (1991) 229 Cal.App.3d 26
Stevenot v. Stevenot (1984) 154 Cal.App.3d 1051 (See also RJN Sec. C items 13-15, Modnick, Aheroni, Estate of Sanders; extrinsic fraud)
Wallace v. McCubbin (2011) 196 Cal.App.4th 1169
 Statutes and Rules
 Code Civ. Proc., §§ 425.16(b), (c)(1), (e), (g), (i); 425.17(a), (b), (c), (d), (e); 472; 128.5; 128.7(b), (c)(1), (c)(2), (d); 1005(b); 1010.6; 1033.5
 Civ. Code, § 47(b)

Evid. Code, §§ 1280; 1530

Cal. Rules of Court, rules 2.251; 3.1113(b), (d), (f), (g), (j), (l); 3.1300(d); 3.1306(a)

Other Authorities

All non-Pool-A decisional authorities supporting collateral lines of analysis are catalogued in Plaintiff's Request for Judicial Notice (filed May 7, 2026), Section C, under Evid. Code secs. 452(c) and (h).

Cross-references: Plaintiff's Notice of Withdrawal and Designation (filed May 7, 2026); Plaintiff's Request for Judicial Notice (filed May 7, 2026); Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code Section 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections 2695.1 through 2695.8) (filed May 7, 2026); Plaintiff's Declaration in Opposition (filed May 7, 2026); Plaintiff's Notice and Statement re C.C.P. §425.17 (filed May 7, 2026), including Section IV-A (Insurance Code section 790.03(h) and Fair Claims Settlement Practices Regulations Violation Register); Plaintiff's Evidentiary Objections to Declarations of Tyler J. O'Connell (filed May 7, 2026); supplemental bench briefs filed May 5, 2026 (Trans. IDs 79390442, 79390024); §128.7(c)(2) Notice served May 5, 2026.

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Franciscus Dylan Rosario, appearing in pro per in Rosario v. Abdelhalim et al. (CGC-25-631801), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 12, 2026, 9:30 a.m. anti-SLAPP hearing in Department 301.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CCP section 425.16	Two-step burden; (e) categorization required for protected activity	Section II addresses step one (Park, Bonni); section V addresses step two (Soukup); per-movant (e) demand articulated	Sections II, V	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
2	CCP section 425.16(c)(1)	Frivolousness fee inversion preserved on contingent basis	Section VIII contains contingent cross-request citing Decker, Moore v. Shaw	Section VIII paragraph 'Contin- gent cross- request under section 425.16(c)(1)'	PASS
3	CCP section 425.17	Categorical exclusions (b), (c), (e) considered before two-step	Section III walks (b); section VIII preserves (c); Plaintiff's Notice re C.C.P. §425.17 (filed May 7, 2026), Section III-A, addresses (c)(1) through (c)(4)	Sections III, VIII; Notice Section III-A	PASS
4	CCP section 1005(b)	Sixteen court-day notice / opposition / reply windows	Page-1 footnote cross-references Plaintiff's Notice of Withdrawal and Designation (filed May 7, 2026), Section VI	Caption page footnote [[^] pg1]	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
5	CCP section 128.7	Twenty-one-day safe-harbor; deterrence-limited sanctions	Section VIII contains threshold response citing 128.7(c)(1), (d), Martorana, Galleria Plus	Section VIII paragraph 'Threshold response to defense's section 128.7 sanctions request'	PASS
6	CRC 3.1113(b)	Memorandum of points and authorities; reply rule	Memorandum body Sections III through XI (excluding Decl., POS.)	Sections III through XI	PASS
7	CRC 3.1113(d)	Fifteen-page memorandum cap	Memorandum text within fifteen pages	Memorandum body and Table of Authori- ties	PASS
8	CRC 3.1113(e)	Font and spacing per local rules	Eleven-point Times New Roman, 1.5 line spacing, one-inch margins on caption page and in body	Caption page; memoran- dum body	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
9	CRC 3.1113(g)	Table of authorities required when over 10 pages or in counsel's discretion	TOA present with four headings (US Sup. Ct.; Cal. Sup. Ct.; Cal. Ct. App.; Statutes and Rules)	Table of Authori- ties section	PASS
10	CRC 3.1113(j)	Incorporation by reference	Sections I, II, V incorporate companion declarations, exhibits, RJN, Notice re section 425.17, Evidentiary Objections, Notice of Withdrawal, Motion to Strike Reply Declaration	Sections I, II, V; cross- references at end of filing	PASS
11	CRC 3.1300(d)	Discretion on late papers	Page-1 footnote cross-references Notice of Withdrawal and Designation, Section VI (good cause)	Caption page footnote [^pg1]; Notice of With- drawal Section VI	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
12	CRC 3.1306(a)	Written ruling per objection	Memorandum Section I, subsection (c) cross-references Plaintiff's Evidentiary Objections and Motion to Strike Reply Declaration, which request written rulings	Memorandum Section I, subsection (c)	PASS
13	Evid. Code section 1280	Official-records exception applied	Section V cites Kraft, 23 Cal.4th 978, 1037, for trial-transcript admissibility	Section V	PASS
14	Evid. Code section 1530	Certified-copy presumption applied	Section V cites Hill, 3 Cal.4th 959, 985, for transcript admissibility	Section V	PASS
15	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
16	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS
17	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
18	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Section VI Proof of Service graphic on last arabic lineno pages; precedes roman Table of Authori- ties	PASS
19	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS
20	CRC 3.1112	Other papers; required components	Caption, body, signature page, and companion Proof of Service filed concurrently	Memorandum Section VI signer before roman appendix; Proof of Service	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
21	CCP section 425.16(g)	Discovery stay and good-cause specified discovery preserved	Section V-A addresses discovery-stay impact and cross-references companion §425.16(g) motion in CGC-25-631802	Section V-A	PASS
22	CCP section 425.16(i)	Appellate preservation; immediate appeal	Section X preserves §425.16(i) appellate rights and de novo review of preserved issues	Section X	PASS
23	CCP section 472	Leave to amend in conjunction with Baral narrowest relief	Section IX articulates leave-to-amend request under §472 and Baral's narrowest-relief mandate	Section IX	PASS
24	Per- movant CCP section 425.16(e) catego- rization	Per-movant burden of (e) categorization	Section II Step One contains per-movant categorization summary paragraph for CSAA, Carbone Smith and Koyama, and Michael R. Chambers	Section II Step One per- movant summary	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
25	Procedural cure con- solidation (CRC 3.1113(g); 3.1300(d))	Cure record consolidated in one section before Conclusion	Section XI Procedural Cure Map and Acceptance of Responsibility	Section XI	PASS
26	Itemized prayer for specific orders (CRC 3.1113(b))	Conclusion / Prayer requests specific orders	Section IV Conclusion / Prayer is itemized (a) through (g)	Section IV	PASS